☒ **District Court** ☐ Denver Juvenile Court **Delta** County, Colorado Court Address: 501 Palmer Street, Suite 338, Delta, CO 81416	▲ **COURT USE ONLY** ▲
Petitioner: PETE McCARTHY, *v.* **Respondent:** SAMIRA M. VETTER, in her official capacity as Town Clerk of the Town of Paonia, Colorado.	**Case Number:** _____ **Division:** _____ **Courtroom:** _____
Attorney or Party Without Attorney (Name and Address): Pete McCarthy, 119½ Dorris Avenue, Paonia, CO 81428 Phone Number: (415) 623-9773 E-mail: petefromsf@gmail.com FAX Number: N/A Atty. Reg. #: *Pro Se*	

EXHIBIT B

Town Clerk Rejection Letter — April 3, 2026

Letter from Samira M. Vetter, CMC, Town Clerk, to Peter McCarthy and Melayna Rosa, dated April 3, 2026, rejecting the citizen initiative petition received March 27, 2026.

2 pages.

Town of Paonia
Office of the Town Clerk
Samira M Vetter, CMC
214 Grand Ave.
P.O. Box 460
Paonia, CO 81428
O: (970) 527-4101
C: (970) 742-4658

April 3, 2026
Peter McCarthy
Melayna Rosa
119 ½ Dorris Avenue
Paonia, CO 81428

Mr. McCarthy & Ms. Rosa,

The submitted citizen initiative and proposed ballot measure, that were received by the Clerk's Office on March 27, 2026, are hereby rejected for the reasons outlined below.

The measure does not comply with the single-subject requirement set forth in Article V, Section 1(5.5) of the Colorado Constitution. If a proposed measure is too broad to be assigned a title addressing only one subject, it is not eligible for placement on the ballot. The proposed measure includes multiple distinct subjects, including but not limited to surveillance of public property, contracting with third parties, body-worn cameras for law enforcement, and judicial remedies for citizens.

In addition to the single-subject deficiency, the following subject matter concerns are noted:

- Body-Worn Cameras: This area is governed by the Enhance Law Enforcement Integrity Act. Key aspects are controlled by state statute, and local measures may not conflict with or override state law.

- Surveillance of Public Property: The management and operation of Town property are administrative functions and are not within the scope of citizen-initiated legislation.

- Sections 2 and 5 (Contracts): The approval, modification, or voiding of contracts are administrative matters and are not legislative in nature; therefore, they are not subject to citizen initiative.

- Section 6 (Injunctive Relief): The provision of injunctive relief is a judicial function and cannot be established through local legislation.

- Section 7 (Voter Approval for Amendment/Repeal): Requiring voter approval to amend or repeal an ordinance has been determined to be invalid under Colorado law.

Based on the foregoing, the proposed measure does not meet the legal requirements for placement on the ballot or the collection of signatures.

Samira M. Vetter, CMC
Paonia Town Clerk